

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 27, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel (via Zoom), Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Johnson and Mr. White, item #18 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Johnson, item #27(b) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Dr. Rinne voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on November 13, 2023. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Creating Section 12.04.240, Mobile Storage Containers on Public Right-of-Way; Permit Required, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming and making a conforming amendment as specified. (Postponed from November 13, 2023). Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Dr. Aldrich. Mr. White moved to amend by substitute dated November 21, 2023 which includes the following motions made in committee: amending Section “D” to strike “thirty (30)” days and replace it with “ninety (90)” days and amending section “D” and Section “H” to reflect the change and extend the total number of combined days to one hundred eighty (180) in any consecutive twelve (12) month period, seconded by Dr. Aldrich. Motion to amend by substitute failed. Voting “no” – all members of the governing body. Mr. Roybal moved to postpone to December 11, 2023, seconded by Dr. Aldrich. Motion to postpone carried. Voting “yes” – all members of the governing body with the exception of Mr. Esquibel and Mr. Johnson voting “no”. Public comment was made by: Rick Fierro, Ram Trucking Inc. and James Bowers, Lynn Buys Houses. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson and Mr. Roybal.

ORDINANCE –3rd READING – Amending the Official Zoning map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located at Lot 2, Block 1, Sunnyside Addition, 10th Filing. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4530)

ORDINANCE –2nd READING – Amending Subsections 6.6.3.b.3, 6.7.5.c, and 6.9.3.e of the Unified Development Code (UDC), changing the building façade design requirements for multifamily residential development (Postponed from November 13, 2023). Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated November 16, 2023, seconded by Mr. Segrave. Motion to amend by substitute failed. Voting “yes” – Mr. Cook, Dr. Rinne, Mr. Roybal and Mr. White. Voting “no” – Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Mr. Laybourn and Mr. Segrave. Main motion failed. Voting “no” – all members of the governing body with the exception of Mr. Johnson voting “yes”. Public comment was made by: Dan Dorsch, Executive Director, Habitat for Humanity of Laramie County, Ansley Mouw, Winters Griffith Architects and Jason Stephen, Gateway Construction. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. Segrave.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business and HR High-Density Residential to MUB Mixed-Use Business for land located northwest of the intersection of Dell Range Boulevard and Whitney Road. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Segrave.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current City limits situate in northwest Cheyenne generally located north of Dell Range Boulevard and west of Powderhouse Road. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”. Public comment was made by: April Brimmer Kunz, Jack Knudson and Bill Weaver. Comments were made by the following members of the governing body: Mayor Collins and Mr. Johnson.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classifications of AG Agricultural LR - Low Density Residential, MR - Medium Density Residential, CB - Community Business, and MUR - Mixed-Use Residential for land annexed to the City of Cheyenne generally located north of Dell Range Boulevard and west of Powderhouse Road. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Amending subsection 6.7.5.b of the Unified Development Code (UDC), changing building façade design requirements to reduce required windows on urban loft multifamily residential and mixed-use residential development – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending subsection 5.1.5 of the Unified Development Code (UDC), removing minimum lot area requirements for detached dwellings, semi-attached dwellings, attached dwellings, and multi-dwelling buildings – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending subsection 5.1.5 of the Unified Development Code (UDC), removing density requirements for multi-dwelling buildings – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending subsection 6.2.4 of the Unified Development Code (UDC), amending Table 6-2, required automobile parking for multi-family development – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending Title 6, Animals, of the Municipal Code of the City of Cheyenne, Wyoming, regarding the registration, control, impoundment and general care of animals and birds within the city – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Authorizing the Mayor to Execute a Settlement Agreement with WJE, LLC to resolve the April 6, 2023 Notice of Governmental Claim regarding an alleged taking of real property in Saddle Ridge adjacent to Christensen Road. Motion (per Consent Agenda) carried. (#6366/Contract #7862)

RESOLUTION – To provide salary adjustments to 116 non-uniformed employees identified through a wage matrix tool created to address pay disparity (Various City funds). Mr. White moved to adopt, seconded by Mr. Roybal. Dr. Aldrich moved to postpone to December 11, 2023, seconded by Mr. White. Motion to postpone failed. Voting “yes” – Dr. Aldrich, Mr. Johnson, Mr. Laybourn and Mr. White. Voting “no” – Mr. Cook, Mr. Esquibel, Dr. Rinne, Mr. Roybal and Mr. Segrave. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson, Dr. Rinne, Mr. Roybal, Mr. Segrave and Mr. White. (#6367)

[CA] RESOLUTION – Acknowledging the adoption of the Wyoming Retirement System deferred compensation plan for full-time employees, adopting the deferred compensation plan for part-time employees, and further specifying the part-time employee plan enrollment method. Motion (per Consent Agenda) carried. (#6368)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts pursuant to Wyoming Statute §16-4-502. Motion (per Consent Agenda) carried. (#6369)

[CA] RESOLUTION – Authorizing the Mayor to execute all necessary documents related to the transfer, purchase and sale of a specified portion of the property located at 503 West College Drive (Public Safety Infrastructure Fees). Motion (per Consent Agenda) carried. (#6370/Contract #7863)

[CA] RESOLUTION – Authorizing the Mayor to sign a Final Plat for Sunnyside Addition, 13th Filing, a replat of Lot 2, Block 1, Sunnyside Addition, Tenth Filing, City of Cheyenne, Laramie County, Wyoming (located east of Cleveland Avenue and north of US 30). Motion (per Consent Agenda) carried. (#6371)

RESOLUTION – Granting an exception to the ‘201 Agreement’ for the owner of the property located on a portion of the SW ¼ Section 13 to allow installation of on-site sewage holding tanks (septic system) located within Laramie County. Mr. Cook moved to adopt, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated November 20, 2023, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” - all members of the governing body. Public comment was made by: Scott Larsen, Benchmark Engineers, applicant for the owner and Jennifer Escobedo, Cheyenne Laramie County Health Director. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Segrave. (#6372)

[CA] RESOLUTION – Supporting the conversion of a portion of the Dutcher Ball Fields, located at 4200 Converse Avenue, Cheyenne Wyoming from Perpetual Public Outdoor Recreation use and committing to encumber the Rotary Park property to be donated by the Cheyenne Rotary Club Foundation to include a deed restriction for Perpetual Public Outdoor Recreation use pursuant to the requirements set forth in the Land and Water Conservation Fund Act of 1965 – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing a three (3) percent cost-of-living salary adjustment for all permanent full and part-time employees of the City of Cheyenne – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown District Boundaries for New Years Eve on December 31, 2023 – referred to Finance Committee. (Sponsor – Mr. Johnson)

[CA] Agreement between the City of Cheyenne and WMC Cheyenne, LLC for a Drainage Easement granted to the City to ensure maintenance of a storm water conveyance system. Motion (per Consent Agenda) carried. (#7864)

Memorandum of Understanding between the City of Cheyenne and the Cheyenne Depot Museum Inc regarding the charitable contribution from the David Donoho-A Friend of the #844 Fund, a fund of the Indianapolis Foundation to the Cheyenne Depot Museum to support the restoration of Old Sadie for the 15th Street Rail Project (Revenue to the City). Mr. White declared a conflict of interest and vacated council chambers. Dr. Aldrich moved to approve in an amount not to exceed \$480,000.00, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Christy White, Cheyenne Depot Museum. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn, Mr. Roybal and Mr. Segrave. (#7865)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District #1 for community counseling and crisis intervention services (Revenue to the City). Motion (per Consent Agenda) carried (in an amount not to exceed \$200,770.49). (#7866)

[CA] Professional Services Agreement between the City of Cheyenne and Ardurra for the Charles Street Drainage and Roadway Improvements Design Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$152,200.00). (#7867)

[CA] Grant Award Agreement between the City of Cheyenne, Cheyenne Fire Rescue Department, and the Wyoming Office of Homeland Security, FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2023 in the amount of \$109,000.00 to support ongoing training and equipment purchases for the Cheyenne Fire Rescue Regional Emergency Response Team 7 (RERT7) (Revenue to the City). Motion (per Consent Agenda) carried. (#7868)

[CA] Minimum Revenue Guaranteed Payment Agreement between the City of Cheyenne and the Cheyenne Regional Air Service Focus Team (CRAFT) for Fiscal Year ending June 30, 2024 (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and GSG Architecture, Inc for the Municipal Building Spatial Analysis Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Purchase and Sale Agreement for property located at 813 West 23rd Street for the Reed Avenue Corridor Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7770 between the City of Cheyenne and Z and Z Sealcoating, Inc. for additional material required for the 2023 Crack Seal #1 Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Dowdle Studios for the Commissioned Painting and Puzzles Project (General Fund Reserves) – referred to Finance Committee.

[CA] Bar and grill liquor license application filed with the City Clerk's Office for Wyoming Horse Racing LLC d/b/a Horse Palace, 1802 Dell Range Blvd. Suite 3, Cheyenne, WY. Motion (per Consent Agenda) carried.

Comments were made by the following members of the governing body related to the Voucher Report: Dr. Aldrich and Mr. Laybourn.

Comment was made by the following member of the governing body related to the Revenue Report: Mr. Johnson.

Announcement of a Public Hearing was made to be held December 11, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 5.91 acres of land located west of Polk Avenue and north of and adjacent to E Pershing Blvd.

The following member of the governing body made comment under other business: Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:50 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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